

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. AMBER POSTON

Date: October 24, 2025

Court Room Rules and Notices

#	Case Name	Tentative
1	2017-00910991; NNN Capital Fund I, LLC v. Mikles	Judgement creditors requests are DENIED without prejudice for the judgment creditor to bring noticed motions for the same relief pursuant to California Code of Civil Procedure § 1005 and California Rule of Court 3.1300 et seq. The Court notes the following issues, other than the form of the request. The statutes covering the enforcement of civil judgments are organized in the Enforcement of Judgments Law, Code of Civil Procedure sections 680.010 through 724.260. The Court finds nothing in these sections that give the Court the authority to have a judgment debtor's interest in real property conveyed to the judgment creditor. Regarding appointment of a receiver to enforce a money judgement, creditor must FIRST establish the legal necessity for appointment of a receiver before the request will be considered. Finally, regarding turnover of offshore funds, the creditor must provide the legal authority for the court to exercise jurisdiction over the accounts.
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